

CIPA-Safe Mystery-Shop Benchmark Protocol

Prepared for review by **Roberta Yang** · Intake QA / Plaintiff Ops LLC · Sacramento, California
Confidential draft for legal review. Not legal advice; not for distribution.

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Prepared by Intake QA / Plaintiff Ops LLC for review, correction, and sign-off by **Roberta M. Yang** (former Deputy Chief Trial Counsel, California State Bar). Ms. Yang is a **warm contact, not retained counsel**. This document exists to give her honest, well-researched questions to react to — not to assert conclusions. Where the law is unsettled, this draft says so.

Hard gate: No live claimant calls. No fieldwork, no dialing, no shopper calls of any kind until Ms. Yang (or a retained CA legal-ethics / privacy substitute) signs the go/no-go list in §11 below. Nothing in this document authorizes a single call.

o. Purpose in one paragraph

Intake QA wants to publish the first *independent* benchmark of Northern California plaintiff personal-injury (PI) intake quality — a J.D. Power / Consumer-Reports-style study run by a party with no stake in the result. The instrument is a **mystery shop**: a small number of trained shoppers place a **fixed, scripted** inbound-style call to a defined sample of NorCal PI firms, and score the intake experience against a fixed four-minute rubric. The entire legal problem is that California is an **all-party-consent** recording state (Penal Code §§632, 632.7), so the protocol must be designed so that it is **lawful whether or not anyone is recorded** — the safest posture, and the one this draft adopts, is **do not record the calls at all**. This memo sets out the scenario, the rubric, exactly what is and is not recorded, the §632/§632.7 posture, a §638.51 pen-register / website-tracking caution, data handling, and the precise sign-offs required before any dialing.

1. The fixed test scenario (a scripted shopper, NOT a real claimant)

Design principle: every shopper runs the *same* script so the study measures the firm's intake, not the shopper's storytelling. The scenario is fictional. **No shopper has a real injury, real claim, or intent to retain counsel.**

- **Persona (fixed):** an adult caller who was a **passenger** in a rear-end motor-vehicle

collision roughly two weeks ago, saw a doctor once, has neck/back soreness, is "not sure whether it's worth talking to a lawyer," has not signed with anyone, and is "just calling around." A passenger-not-driver, low-drama, non-emergency fact pattern is chosen so the call is routine, non-manipulative, and unlikely to trigger urgent legal intake behavior that would distort scoring.

- **Fixed disclosures the shopper gives if asked:** first name only (pseudonymous), a study-controlled callback number, city, the two-week-ago timing, and the single doctor visit. The shopper does **not** invent injuries, does **not** escalate, and does **not** agree to be signed up, booked for an in-person appointment, or sent paperwork.
- **Hard stops for the shopper (script guardrails):**
 - Never claim to be a real client or to have a real case.
 - Never provide a real third party's PII.
 - **Never** agree to, or proceed toward, actually retaining the firm or e-signing anything.
 - If the firm tries to set an appointment or send a retainer, the shopper declines politely ("I'm still thinking it over, thanks") and ends the call.
 - If asked point-blank "Is this a real case / are you a tester?", the shopper does not lie in a way that manufactures a legal relationship — see the **candor question** for Yang in §10. This is a genuine open question, not a settled one.
- **Call length:** target under ~4 minutes; the shopper ends the call once the rubric items can be observed or the firm has clearly completed its intake behavior.
- **Volume/frequency caps (harassment / capping avoidance):** one call per firm per study wave; no repeat dialing; no after-hours "test whether voicemail works" second calls without a specific, Yang-approved reason. (Whether even a single scripted shopper call implicates B&P anti-solicitation/capping concepts is a question for Yang — §10.)

2. The four-minute scoring rubric (what the shopper records on paper, about the FIRM)

The shopper scores the firm's *behavior*, from memory and contemporaneous notes, on a fixed form. **These are observations about the firm's process, not a recording of the conversation.** Illustrative rubric dimensions (final rubric is a separate deliverable and is itself subject to Yang's methodology review):

1. **Answer / pickup:** answered live, by a machine/IVR, by an answering service, or unanswered; rings-to-answer; hold time.
1. **Speed-to-human:** did a human capable of intake engage, and how fast.
2. **Basic intake competence:** did they capture who/what/when; did they ask about injury and treatment; did they explain next steps.
1. **Responsiveness / callback:** if a message was taken, was a callback promised, and (in a

controlled follow-window) did one occur to the study-controlled number.

1. **Spanish-language capability:** for a defined subset, was competent Spanish intake available, or was the caller dead-ended in English. (Any Spanish-language wave uses the identical no-record posture and the same consent analysis — no lower bar, per our internal compliance standard.)

1. **Professionalism / tone:** neutral, coded observation — not a transcript.

Each dimension is scored on a fixed scale with a **published false-alarm rate** and tiered confidence when the study is written up. The rubric captures **scores and coded observations only** — never verbatim quotes of what the intake worker said, so that the artifact retained is an evaluation, not a surreptitious record of the other party's words. (Whether contemporaneous *note-taking* of a non-recorded call raises any residual issue is a question for Yang — §10.)

3. What is recorded — and what is NOT (the core CIPA design)

Adopted posture: DO NOT RECORD THE CALLS. No audio capture, no transcription, no call-recording of any kind, on either end, at any point. This is the single most important control in the protocol and the reason the study can be run lawfully in an all-party-consent state without depending on obtaining the firm's consent.

- **NOT captured:** call audio; any recording device on the line; automated transcription;

screen-recording of a softphone; voicemail audio saved beyond what the phone system transiently holds; any verbatim quote of the intake worker.

- **Captured (about the firm, not the conversation):** the shopper's **rubric scores and coded notes, **the** date/time, which firm, answer channel (**human / IVR / service / unanswered**), timing metrics (**rings, hold, callback latency**), and pass/fail observations** per rubric item.

- **Shopper-side identifiers:** a **study-controlled callback number** (a dedicated line the study owns) and a **pseudonymous first name** — never a shopper's real personal number or a real third party's identity.

- **No firm PII beyond public business-directory data** (firm name, public main line) is stored. The intake worker is **not** individually identified in the dataset (coded role only, e.g. "front-desk / answering service / attorney").

Why this matters legally: §632 and §632.7 are about *recording/intercepting*. If nothing is recorded or intercepted, the conduct the statutes prohibit does not occur. The evaluator's paper score is analogous to a shopper remembering an experience and rating it — not to secretly taping a

call. This is the intended safe harbor. **Yang must confirm this reasoning holds and that "no recording" is genuinely maintained end-to-end (§10).**

4. California all-party-consent posture — Penal Code §632 and §632.7

Primary statutory text:

- **Penal Code §632(a)** prohibits a person who, *"intentionally and without the consent of all parties to a confidential communication, uses an electronic amplifying or recording device to eavesdrop upon or record the confidential communication."* First offense: fine up to \$2,500 per violation and/or up to one year in county jail. **§632 requires the communication be "confidential."** Source: Cal. Penal Code §632, https://leginfo.ca.gov/faces/codes_displaySection.xhtml?lawCode=PEN§ionNum=632

- **"Confidential communication" (§632(c))** means *"any communication carried on in circumstances as may reasonably indicate that any party to the communication desires it to be confined to the parties thereto,"* excluding communications made where the parties may reasonably expect they are being overheard/recorded, or in public proceedings. Source: same.

- **Penal Code §632.7** prohibits, *"without the consent of all of the parties to a communication,"* intercepting or receiving **and** intentionally recording a communication transmitted between cellular/cordless/landline phones (in the enumerated combinations). **Critically, §632.7 does NOT contain a "confidential" requirement** — courts have read it to reach recording of cell/cordless-phone calls regardless of confidentiality. This is why "the call wasn't confidential" is **not** a safe assumption to rely on: a firm intake line is very often a cellular or cordless connection. Source (secondary, for framing): Seyfarth Shaw, *Smith v. LoanMe* analysis, <https://www.seyfarth.com/news-insights/california-supreme-courts-holds-that-recording-cell-phone-calls-without-consent-is-unlawful-and-subjects-recorders-to-class-action-exposure.html>; statutory text: Cal. Penal Code §632.7.

How the protocol stays lawful:

1. **No recording = the prohibited act (record/intercept) never occurs** under either §632 or

§632.7. This is the primary, belt-and-suspenders safeguard.

1. Because we rely on **not recording**, we do **not** have to resolve the harder questions of (a) whether a firm's intake line is "confidential" under §632, or (b) whether §632.7's no-confidentiality rule would sweep the call in — we sidestep both by capturing nothing.

1. The shopper is a **party** to the call (not a wiretapping third party eavesdropping on

others' conversation), which removes §631-style eavesdropping concerns — but party status does **not** cure recording without all-party consent, which is exactly why we record nothing.

1. **No consent is solicited from the firm**, because none is needed when nothing is recorded; the study deliberately avoids any workflow that would require capturing consent it cannot reliably get. (Contrast: the *product* side always assumes the *firm* captures recording consent in its own real workflow. The *benchmark* avoids the issue entirely by not recording.)

For Yang (Note: these points are not yet independently confirmed — see questions for Yang): whether a shopper's **contemporaneous handwritten/typed notes** of a non-recorded call could ever be recharacterized as "recording"; whether any transient system artifact (carrier voicemail, softphone buffer) counts as a "recording" we must affirmatively suppress; and whether the fictional-persona/candor issue (§10) creates any independent exposure separate from CIPA.

5. §638.51 pen-register / CIPA website-tracking caution (adjacent but real)

Primary statutory text:

- **Penal Code §638.51(a):** "a person may not install or use a pen register or a trap and trace device without first obtaining a court order,"* subject to service-provider and consent exceptions in §638.51(b). Violation: fine up to \$2,500 and/or up to one year in county jail. Source: Cal. Penal Code §638.51, https://leginfo.legislature.ca.gov/faces/codes_displaySection.xhtml?lawCode=PEN§ionNum=638.51

Why this is in a *mystery-shop* protocol: the pen-register theory is currently the engine of a **litigation surge** (CIPA website-tracking/pen-register suits reportedly jumped from ~600 to >4,000; **SB 690**, which would strip the private right of action for §§638.50/638.51 and route enforcement to the AG, was **still pending** as of July 2026 and cannot be relied on). Plaintiffs argue that software capturing a website visitor's identifiers/metadata is an unlawful "pen register." Two concrete exposures for us:

1. **The study-controlled callback line / any call-analytics tooling** must not deploy anything

that could be characterized as a pen-register / trap-and-trace on inbound callers without a §638.51(b) basis (e.g., consent). Keep the shopper phone line dumb: no third-party call- capture analytics, no number-fingerprinting SDKs.

1. **plaintiffops.com and any benchmark landing page** must be audited for tracking pixels, session-replay, chat widgets, and analytics that plaintiffs are currently suing over. This is the website-tracking flavor of CIPA, distinct from our §632 recording posture, and it applies the moment we publish the benchmark and drive traffic to it. (Covered by our separate site-tracker

audit.) Ninth Circuit *Popa* (Aug 2025) tightened Article III standing (concrete/private-info injury required), but does not eliminate exposure.

For Yang (Note: these points are not yet independently confirmed — see questions for Yang): whether ordinary first-party web analytics on a benchmark landing page is safe, and what the minimum defensible tracker posture is given the pending-SB-690 uncertainty.

6. Data handling & retention

- **Data collected is deliberately thin:** firm identity (public directory data only), rubric scores, coded observations, timing metrics, wave date. **No call audio, no transcripts, no intake-worker PII, no real claimant PII** (there is no real claimant).
 - **Storage:** access-controlled; not placed in URLs, logs, analytics events, or third-party tools without a data-processing basis.
 - **Retention:** raw shopper worksheets purged after the benchmark dataset is finalized and QC'd, on a defined data-retention schedule; only **aggregate, de-identified** findings survive into the published report. No firm is individually named with a failing score without a separate, Yang-reviewed fairness/defamation review (see §10).
 - **Publication:** the report presents **aggregate** results with tiered confidence and a **published false-alarm rate**. Naming or shaming an individual firm is out of scope for this protocol.
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7. What this protocol explicitly does NOT authorize

- No recording of any call, ever, under this protocol.
 - No live scoring of a **real** claimant's real call (that is the product, and it requires the firm's own documented consent chain; it is not this study).
 - No autodialing, no blast, no repeat dialing, no after-hours probing without specific approval.
 - No individual-firm "report card" publication.
 - No public claim that the study is "CIPA-compliant" or "Yang-approved" until §11 is signed.
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8. Sequence of operations (once, and only once, §11 is signed)

1. Finalize firm sampling frame (separate deliverable).
 2. Finalize rubric + shopper script + candor rules (this doc's siblings) — Yang reviews.
 3. Train shoppers on the fixed script and the hard stops (§1).
 4. Provision the dumb study callback line (no pen-register-style analytics, §5).
 5. Run one wave: one call per firm, no recording, paper rubric only.
 6. QC, aggregate, de-identify, purge raw worksheets per §6.
 7. Draft findings with false-alarm rate and confidence tiers → published report → Ali + Yang approve before any publication.
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9. Preliminary self-assessment (honest, not confident)

- **Strongest ground:** the "record nothing" posture removes the act §632/§632.7 prohibit.

If maintained end-to-end, the core CIPA recording exposure is designed out, not argued around. (*Preliminary read: appears sound — but Yang must confirm.*)

- **Softest ground:** the **fictional-persona** / **candor** dimension (are we deceiving the firm, and does that matter under B&P solicitation/capping rules, unfair-competition law, or professional-conduct norms even though *we* are not lawyers?), and the residual "is a note a recording?" question. These are genuinely unsettled for our exact fact pattern and are the reason this goes to Yang before anyone dials. (*Preliminary read: UNCERTAIN — do not proceed on our own judgment.*)

10. Questions for Yang

1. **Core CIPA:** Does a **no-recording, party-to-the-call, scored-rubric** mystery shop avoid §632 and §632.7 entirely because the prohibited act (record/intercept) never occurs? Is there any residual theory (e.g., §631) we are missing given the shopper is a party?

1. **Notes-as-recording:** Do contemporaneous handwritten/typed rubric notes of a non-recorded call create any "recording"/eavesdropping exposure? Any wording we should avoid capturing (e.g., verbatim quotes)?

1. **Transient artifacts:** Must we affirmatively suppress carrier voicemail / softphone buffers so nothing that could be called a "recording" survives even briefly?

1. **§632.7 no-confidentiality trap:** Is our reliance on "record nothing" (rather than on the

call being non-confidential) the correct way to neutralize §632.7's lack of a confidentiality element?

1. **Candor / fictional persona:** Is a **scripted fictional shopper who never retains and never claims a real case* *lawful and ethically defensible for an *independent vendor* (not a lawyer)? If the firm asks "are you a tester?", what should the shopper do? Does the persona implicate B&P §§6151–6152 (runner/capper), Unfair Competition Law (B&P §17200), or any recording/consent doctrine we haven't spotted?

1. **Anti-solicitation / capping:** Does a single scripted shopper call to a firm implicate the anti-"capping"/solicitation regime (freshly toughened by SB 37, eff. 1/1/2026) in any way, given we are neither soliciting the firm's business improperly nor steering claimants?

1. **§638.51 pen-register:** What is the minimum defensible tracker/analytics posture for (a) the study callback line and (b) the benchmark landing page on plaintiffops.com, given the pen-register litigation surge and the still-pending SB 690?

1. **Publication fairness:** Confirm the **aggregate-only, no-firm-named** publication rule, and flag any defamation / trade-libel guardrails if we ever considered naming firms (we currently do not).

1. **Cross-jurisdiction:** If any sampled firm's line routes out of California, does anything change? (Our answer: record-nothing makes this moot — please confirm.)

11. GO / NO-GO — exact items requiring Yang's signature BEFORE any dialing

No call may be placed until every item below is signed off by Roberta M. Yang (or a retained CA legal-ethics/privacy substitute). This is a hard gate.

- [] **G1.** The **no-recording posture** (§3–§4) is legally sufficient to keep the study outside Penal Code §632 and §632.7.
- [] **G2.** Contemporaneous **rubric note-taking** (no verbatim quotes) creates no residual recording/eavesdropping exposure (§4, Q2).
- [] **G3.** The **fictional scripted-shopper persona** and the **candor rule** for "are you a tester?" are approved as lawful and defensible (§1, Q5).
- [] **G4.** A single scripted shopper call does **not** implicate B&P §§6151–6152 capping/running or SB 37's toughened anti-solicitation regime (Q6).
- [] **G5.** The **pen-register / tracker posture** for the study line and the benchmark

landing page is approved (§5, Q7).

- [] **G6.** The **data-handling & retention** plan (§6) and the ****aggregate-only, no-firm-named**** publication rule (§6, Q8) are approved.
- [] **G7.** Any **Spanish-language wave** is covered by the identical no-record posture and consent analysis — no lower bar (§2/§6).
- [] **G8.** Final **rubric + shopper script + hard-stop guardrails** (the sibling deliverables) are reviewed and approved.

Until G1–G8 are signed: no live claimant calls, no shopper calls, no fieldwork of any kind. This document authorizes zero dialing.

Source list (primary where possible)

- Cal. Penal Code §632 (all-party consent; "confidential communication" definition; penalty):
https://leginfo.legislature.ca.gov/faces/codes_displaySection.xhtml?lawCode=PEN§ionNum=632
- Cal. Penal Code §632.7 (cell/cordless recording; no confidentiality element):
statutory text via California Legislative Information; framing per Seyfarth Shaw,
<https://www.seyfarth.com/news-insights/california-supreme-courts-holds-that-recording-cell-phone-calls-without-consent-is-unlawful-and-subjects-recorders-to-class-action-exposure.html>
- Cal. Penal Code §638.51 (pen register / trap-and-trace; court-order requirement; exceptions):
https://leginfo.legislature.ca.gov/faces/codes_displaySection.xhtml?lawCode=PEN§ionNum=638.51
- CIPA pen-register litigation surge + SB 690 pending + Ninth Circuit *Popa* (context):
Holland & Knight, Troutman Pepper Locke, and Barnes & Thornburg alerts.
- SB 37 (toughened anti-capping / solicitation, eff. 1/1/2026), for Q6:
https://calmatters.digitaldemocracy.org/bills/ca_20252026osb37

End of draft. This is a set of questions for a lawyer, not a legal opinion. No dialing until §11 is signed.